

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS AND A
COMMISSION ON PROFESSIONAL COMPETENCE FOR THE
LOS ANGELES UNIFIED SCHOOL DISTRICT
STATE OF CALIFORNIA**

In the Matter of the Dismissal of:

MICHAEL COHEN (EN 794808),

Respondent.

OAH No. 2024100323

DECISION

This matter was heard by a Commission on Professional Competence, (Commission) by videoconference from February 3 through 6, 2025. The Commission consisted of Paula Falsetta, John Kohlmeier, and Nana Chin, Administrative Law Judge (ALJ) with the Office of Administrative Hearings, State of California.

Complainant Los Angeles Unified School District (LAUSD or District) was represented by Leslie J. Chi and Brian Davenport, Assistant General Counsels. Respondent Michael Cohen (Respondent) was represented by Jason Wojciechowski, Attorney at Law, Bush Gottlieb, A Law Corporation.

Testimony and documentary evidence were received. The record was held open until February 19, 2025, for District to submit briefing on Education Code section

44944, subdivision (b)(2)(A), and for Respondent to submit a response. The briefs were timely submitted and marked respectively as Exhibits 31 and B.

The Commission considered the matter in executive session. After due consideration of the entire record herein, the Commission makes the following factual findings, legal conclusions, and order.

FACTUAL FINDINGS

Jurisdictional Matters

1. Respondent has been employed by LAUSD as a credentialed teacher since 2010 and has been assigned to McAlister High School since 2014.
2. On September 11, 2024, the District served Respondent with a Notice of the Board of Education's Intention to Dismiss and Notice of Immediate Unpaid Suspension.
3. On August 14, 2024, Francisco J. Serrato, Ed.D., Chief Human Resources Officer, filed a Statement of Charges against Respondent, alleging: immoral conduct (Ed. Code, § 44932, subd. (a)(1); § 44939); unprofessional conduct (Ed. Code, § 44932, subd. (a)(2)); evident unfitness for service (Ed. Code, § 44932, subd. (a)(6)); persistent violation of, or refusal to obey, the school laws of the state or reasonable regulations prescribed by the State Board of Education or governing board (Ed. Code, § 44932, subd. (a)(8)); and willful refusal to perform regular assignments without reasonable cause (Ed. Code, § 44939).
4. The factual allegations in the Statement of Charges (Exh. 1) and Accusation (Exh. 6) are summarized as follows:

A. "During the period commencing in or around September 2021, to the period ending in or around October 2022, [Respondent] did the following causing student C [REDACTED] H. to feel uncomfortable. [¶] a. Made comments about women's buttocks and breasts. [¶] b. On at least one occasion told a student to wear clothes that showed less cleavage because it looked gross. [¶] c. Noticed when students' bodies changed. [¶] d. Sent her texts on her personal cell phone during the summer. [¶] e. Discussed personal issues with students, including talking about colleagues. [¶] f. Held a Zoom meeting with students during the summer break. (Exh. 1, pp. A2-A27, p. A26-27.)

B. "During the period commencing in or around September 2021, to the period ending in or around October 2022, [Respondent] did the following to student C [REDACTED] H. [¶] a. Regularly allowed her to remain in his classroom when she skipped other classes; [¶] b. Allowed her to remain in his class when she completed her work; [¶] c. Asked her for hugs and held her hand when she had panic attacks causing her to feel uncomfortable; [¶] d. Regularly texted her during non-instructional time; [¶] e. Regularly called her to check on how she was doing and had conversations that lasted less than 30 minutes; [¶] f. Treated her differently than he treated the other students; [¶] g. Gave her a new baking tray; [¶] h. Sent her a text on her birthday to ask how she was doing; [¶] (i) Gave her his cell number and told her that he was up late if she needed to talk; [¶] (j) Texted her a picture of Snoopy and wrote, 'Thank you for thinking of me,' when she called him to inform him that she was not going to attend a Zoom meeting." (Exh. 1, pp. A2-A3, Exh. 6, p. A27.)

C. "During the period commencing on or around September 2021, to the period ending on or about October 18, 2022, [Respondent] said words to the effect of the following to 11th grade student A [REDACTED] P. when she wore a crop top to school

causing her to feel embarrassed and wanting to cry: [¶] a. 'You should not eat the granola bar. Your stomach is sticking out,' when she mentioned she wanted a granola bar. [¶] b. 'You should talk to someone about losing weight.'" (Exh. 1, p. A3, Exh. 6, p. A27.)

D. "During the period commencing on or around August 2020, to the period ending on or around October 2022, [Respondent] did the following: [¶] a. Stated that he did not think about how big women's butts or breasts were but that he did notice when his students started to fill out their bodies. [¶] b. Regularly contacted students on their personal telephone numbers. [¶] c. Spoke negatively about colleagues and Principal Nurnisa Kurban. [¶] d. Shared confidential information about students with other students. [¶] e. Provided minimal support to students because he was often on the computer. [¶] f. Gave students bulk assignments and then retreated to his computer. [¶] g. Told his virtual class that pregnant women look like penguins. [¶] h. Discussed personal matters with students." (Exh. 1, p. A3, Exh. 6, pp. A27-A28.)

E. "When [Respondent] engaged in the above misconduct [as set forth in Factual Findings 4A-4D] commencing in or around August 2020, and ending in or around October 2022, . . . , [Respondent] willfully refused to perform his regular assignments without reasonable cause, as prescribed by the reasonable rules and regulations of the employing District, as evidenced by the following: [¶] a. [Respondent's] failure to follow administrative directives previously given to him, including but not limited to, that he: [¶] i. Not put his hands or have physical contact with students unless they are in immediate danger to themselves or others. [¶] ii. Use good judgment when speaking and working with students. [¶] iii. Refrain from any personal comments of a sexual nature with students. [¶] iv. Refrain from any personal

comments with students. [¶] v. Adhere to all Board policies and bulletins.” (Exh. 1, p. A4, Exh. 6, p. A28.)

F. “When [Respondent] engaged in the above misconduct commencing in or around August 2020, and ending in or around October 2022, as described in [Factual Findings 4A-4D] individually and/or collectively, [Respondent] willfully refused to perform his regular assignments without reasonable cause, as prescribed by the reasonable rules and regulations of the employing District, as evidenced by the following: [¶] b. [Respondent’s] failure to adhere to all District Policies, specifically, but not limited to: [¶] i. LAUSD Code of Conduct with Students [¶] ii. LAUSD Employee Code of Ethics [¶] iii. LAUSD Board Rule Reaffirming the Respectful Treatment of all Persons [¶] iv. LAUSD Sexual harassment Policy [¶] v. LAUSD Non-Discrimination and Anti-harassment (including sexual harassment) Policy and Complaint Procedure [¶] vi. California Standards for the Teaching Profession [¶] vii. Teaching and Learning Framework.” (Exh. 1, p. A4, Exh. 6, pp. A28-29.)

G. “During the period commencing on or around August 2021, to the period ending on about June 2022, on one occasion, [Respondent] became upset and threw desks and chairs in the classroom when he learned that Karla Griego, a teacher at McAlister High School, left work early.” (Exh. 1, p. A4, Exh. 6, p. A29.)

5. Respondent timely filed a Notice of Defense and Request for Hearing.

6. On October 30, 2024, Kristen K. Murphy, Ed.D., Associate Superintendent Talent & Labor Relations, filed an Accusation, reiterating the charges in the Statement of Charges.

McAlister High School

7. McAlister High School (McAlister) is an alternative educational institution in the LAUSD system for students in seventh through twelfth grade, designed to support pregnant and parenting students. During the period alleged in the Statement of Charges, it operated on three satellite campuses.

2019-2020 Final Evaluation Report

8. Respondent's last formal evaluation before his reassignment, signed on April 20, 2020, was admitted as Exhibit 10. As part of his evaluation, Respondent participated in an Initial Planning Sheet (IPS) conference on October 4, 2019, and submitted his IPS to administration on October 16, 2019. A pre-observation conference was held on January 30, 2020, followed by a classroom observation on February 7, 2020, and a post-observation conference on February 11, 2020.

9. Respondent was rated effective in all evaluated areas, including instructional delivery. Principal Tara Thurston, who conducted the evaluation, wrote that Respondent "has met standard performance in all areas of teaching and additional responsibilities" and "has demonstrated exceptional compassion for and dedication to the students. He is always looking for ways to improve his instruction in an effort to improve student achievement." (Exh. 10, p. A48.)

Investigation

10. On October 17, 2022, C [REDACTED] H., a student, emailed Principal Nurnisa Kurban to report that she no longer felt comfortable around Respondent. She alleged that, during a conversation with another student, M [REDACTED], who asked Respondent how his perspective had changed with age, Respondent stated that he no longer thought

about “how big a woman’s butt is or how big the breasts are,” and added that he notices “when [his] students start to fill in their bodies.” (Exh. 27, p. A319.)

11. C [REDACTED] stated that this was not the first time Respondent had made her feel uncomfortable, and that he had previously made other “weird comments” she had dismissed. She also reported that Respondent texted her and invited her and M [REDACTED] to a Zoom meeting on July 26, during which he spoke negatively about Principal Kurban, Ms. Griego, and other teachers. C [REDACTED] stated she “would prefer to now be in Mr. Furlan’s class and just have [teachers aide] Miriam [Limpahan] bring [her] work from his class.” (Ibid.)

12. The following day, Principal Kurban submitted an Incident System Tracking Accountability Report (iSTAR) and contacted the Los Angeles Police Department (LAPD) Abused Child Unit. LAPD found no indication of a criminal offense and recommended that the matter be handled administratively. Respondent was reassigned, and the Student Safety Investigation Team (SSIT) initiated a formal investigation.

13. Investigators Santisteban and Skane-Williams conducted interviews with Respondent, students, and staff. Investigator Santisteban prepared an investigative report (Report) summarizing those interviews and including C [REDACTED]’s complaint and her text messages with Respondent from summer 2022. Although neither investigator testified at hearing, the Report was admitted into evidence as administrative hearsay. (Exh. 27.)

14. C [REDACTED] and M [REDACTED] were interviewed in person on November 1, 2022. C [REDACTED] stated that Respondent had been her English teacher since September 2021 and allowed her to stay in his classroom throughout the day if she completed her

work, due to issues with other teachers. Her statement is not fully summarized here, except where it materially differed from her hearing testimony.

15. C [REDACTED] reiterated the incident involving M [REDACTED]'s question about aging. She reported that Respondent commented that he no longer focused on women's physical features but notices when students "start to fill out their bodies." (Exh. 27, p. A304.) M [REDACTED] later told her the comments made her uncomfortable as well.

16. C [REDACTED] also described an incident involving A [REDACTED] P., during which Respondent allegedly told A [REDACTED], "When are you going to lose weight? You're fat." (Exh. 27, p. A304.) (The Report indicates C [REDACTED] stated A [REDACTED] was on Instagram in connection with this comment, but C [REDACTED] did not mention Instagram during her testimony, and A [REDACTED] did not mention it during either her interview or her testimony and this appears to simply have been an error.)

17. During her interview, M [REDACTED] did not recall Respondent making any remarks about women's bodies. She acknowledged the class had covered curriculum related to physical development but denied that Respondent made inappropriate comments. She described him as friendly and appropriate with students. M [REDACTED] believed C [REDACTED] filed the complaint because she felt uncomfortable and wanted a teacher who spoke both English and Spanish.

18. A [REDACTED] P. was interviewed on March 13, 2023. She described Respondent as helpful and said she never heard him comment on students' bodies or discuss personal topics in class. She also denied hearing other students complain about his behavior.

19. A [REDACTED] did recall one incident when she wore a crop top to school and told Respondent she was hungry. He told her not to eat a granola bar because her

stomach was sticking out and suggested she talk to someone about losing weight. A [REDACTED] said the comment embarrassed her and made her want to cry. She identified C [REDACTED] and M [REDACTED] as present. She stated this was the only such remark he made to her, and she never heard him make other inappropriate comments.

20. Investigators also interviewed E [REDACTED] M., J [REDACTED] D., M [REDACTED] R., and T [REDACTED] V. All four denied hearing Respondent make inappropriate comments or seeing him act unprofessionally. None reported feeling unsafe or uncomfortable. Several students said they had Respondent's phone number for school-related purposes such as Zoom links or reporting absences.

21. E [REDACTED] described him as respectful and attentive. J [REDACTED] said he was patient and clear. M [REDACTED] appreciated his willingness to speak Spanish. T [REDACTED], although she did not appear to like him personally, described Respondent as demanding but generally helpful.

22. On January 27, 2023, investigators interviewed Ms. Miriam Limpahan, Ms. Griego, and Principal Kurban in person.

23. Ms. Limpahan, a special education aide who had worked with Respondent for six years, said she had never witnessed inappropriate behavior or received student complaints. She noted that C [REDACTED] frequently sought Respondent out privately to discuss personal matters and was the only student who regularly engaged in one-on-one conversations with him. However, C [REDACTED] never expressed discomfort.

24. Ms. Griego's statement was largely consistent with her hearing testimony. She reported occasionally observing Respondent's classroom and believed he did not actively teach, instead assigning independent work while using his computer. She

recalled one occasion when Respondent asked her to speak to a student about inappropriate attire, her only known instance of him referencing female anatomy.

25. Ms. Griego also recalled Respondent comparing pregnant women to penguins in a virtual setting, which she later clarified occurred in a Zoom meeting without students. She described another incident in which Respondent was angry that she left campus early and told her he had thrown desks and chairs. According to Ms. Griego, Respondent stated that students could tell when he was in a bad mood or off his medication and said he had "a lot of mental health issues." She said these remarks made her feel "uncomfortable and unsafe." (Exh. 27, p. A312.)

26. Ms. Griego further stated that C █████ told her she felt uncomfortable around Respondent and that M █████ had expressed similar concerns. C █████ reported receiving a summer text message from Respondent and voiced concern about Zoom meetings held without another adult present. Ms. Griego said Respondent sometimes spoke about personal matters in class, but she could not recall details. She also heard him speak negatively about staff and ultimately filed a complaint because she believed he was targeting female staff members.

27. Principal Kurban stated she became principal in August 2021 but never observed Respondent teach, as he was reassigned before her evaluation. She confirmed that C █████ initially disclosed her concerns to Ms. Griego, who relayed them to her. Upon receiving C █████'s written complaint, Kurban notified Operations Coordinator Michelle Gorsuch, and Respondent was reassigned the following day.

28. Principal Kurban also stated that she feels uncomfortable and unsafe around Respondent due to his frequent emails challenging her administrative

decisions and the accusatory tone of his text messages. She said Respondent accused her of targeting him, which she denied.

District Proceedings Against Respondent

29. On October 6, 2023, a conference was held with Respondent, after which he received a Notice of Unsatisfactory Acts and Notice of a 15-Day Suspension by email. These notices were prepared by Principal Kurban, who stated that she based the charges on the findings of the Report, but she admitted she disregarded statements that contradicted C[REDACTED]'s statements. Principal Kurban also testified that she did not understand the charges that were unrelated to C[REDACTED]'s complaint.

30. On November 28, 2023, an administrative review was held with Respondent, his attorney, and Adan Martinez, Staff Relations Field Director, before Gilberto Martinez, Administrator of Operations, Region East.

31. During the meeting, Respondent stated that he had submitted a written response to the charges. Administrator Martinez noted that Respondent's written response requested that the charges and accusations be rescinded and argued that neither suspension nor dismissal was warranted.

32. In his written response, Respondent stated that C[REDACTED] remained in his classroom under an administrative directive and that he was performing his regular duties as instructed. He further stated that students were required to have his personal phone number for class-related communications and that his communications with C[REDACTED] were cordial, professional, and school-related. Respondent also explained that his comments to A[REDACTED] P. may have been misunderstood. He acknowledged asking Ms. Griego to speak to a female student regarding attire he considered inappropriate for school. Respondent denied ever throwing a desk or chairs.

33. Administrator Martinez elected to recommend to the District's Board of Education that Respondent be dismissed from employment.

Hearing Testimony

C [REDACTED] H.

34. C [REDACTED] H. attended McAlister High School's San Fernando campus from fall 2021 until her graduation in December 2022. She transferred from San Fernando High School three months after giving birth at age 14 and lived in a group home for parenting and pregnant foster youth. At the time, she was experiencing home instability and struggling with her mental health.

35. At a point not established in the record, C [REDACTED] asked not to be placed in Mr. Furlan's class due to his political commentary and remarks about women. She was permitted to remain in Respondent's class.

36. C [REDACTED] testified that she filed a complaint in October 2022 because she had grown increasingly uncomfortable with Respondent's behavior. She believed he had become too familiar with her and acted more like a friend than a teacher. She stated that he shared personal information, sent her messages outside instructional time, gave her a baking tray as a gift, and made comments about female students' bodies that she considered inappropriate.

37. She acknowledged that during the 2021–2022 school year, she had frequently approached Respondent to discuss personal matters and recalled initiating at least one private conversation. On another occasion, she expressed concern about a medication she was taking, and Respondent advised caution, referencing a friend who had experienced negative side effects. Upon cross-examination, she agreed that the

personal information Respondent shared pertained to mental health and was disclosed in conversations she had initiated.

38. C [REDACTED] testified that she experienced a panic attack at school. During the episode, she approached Respondent, who took her hands and began speaking to her. While she allowed the contact at the time, she later testified that it made her uncomfortable. She did not report the incident. This was the only instance of physical contact between them.

39. C [REDACTED] stated that baking helped her manage stress. During the school year, Respondent permitted her to use the classroom kitchenette, and she often shared baked goods with classmates. Respondent later gave her a skull-mold baking tray around Halloween. Although she acknowledged that the gift may have been well-intentioned, she said it made her feel "like a housewife," particularly because it was unrelated to any school assignment.

40. C [REDACTED] described several text messages from Respondent that made her uncomfortable. These included a Facebook link to a video of chihuahuas in Santa hats, as well as several messages during summer 2022, including one on her birthday. She believed the messages were an inappropriate attempt to foster a closer relationship, though she acknowledged Respondent did not invite her to be friends on social media and that the birthday message did not reference her birthday.

41. Respondent also proposed a summer meeting with her and M [REDACTED] in relation to a mental health club she had started the prior year. They were to decorate the classroom and have lunch. C [REDACTED] had concerns about meeting in person and did not respond. Respondent eventually changed the meeting to Zoom, which she did not object to.

42. C [REDACTED] recounted a comment Respondent made that she found inappropriate. He told a student she needed to cover her cleavage, then stated that as he got older, he didn't care about "women's butts or whatever their bodies," but noticed when students "are developing." She said this comment, made in front of M [REDACTED] G. and others, confused her because it had nothing to do with the topic at hand. (M [REDACTED] G. denied hearing the comment during her interview, and the District did not call her to testify.)

43. When asked directly whether she recalled Respondent ever talking to a student about their weight gain, she denied it.

44. When asked whether Respondent talked about other staff members, C [REDACTED] agreed. She said she could not recall specific statements but remembered that he was not fond of the principal or Ms. Griego. She also recalled Respondent mentioning that a new student had special needs, which she believed should have remained confidential.

45. Toward the end of her time at McAlister, C [REDACTED] stated she no longer felt safe in Respondent's classroom. She avoided being alone with him and became increasingly concerned about what she perceived as undue attention toward her and other female students' bodies. She reported her concerns to Ms. Griego, who suggested that Respondent's behavior might constitute grooming. C [REDACTED] testified that the suggestion alarmed her.

46. When first asked whether she believed Respondent should return to the classroom, C [REDACTED] did not express any safety concerns. Instead, she mentioned that Respondent often complained about back pain and stress and that female students

would benefit from a teacher who spoke Spanish. After District counsel asked if C [REDACTED] no longer felt safe in Respondent's class, she agreed.

47. She stated that McAlister's faculty should be younger and female and explained that she felt more comfortable around women due to her history of abuse. When asked if Respondent's actions would have made her uncomfortable had he been female, the only conduct she identified was the comment about students' bodies.

A [REDACTED] P.

48. A [REDACTED] P. testified about her experience with Respondent. She appeared nervous during her testimony and became visibly emotional when discussing issues related to her weight.

49. A [REDACTED] recounted that on one occasion, she came to class wearing a crop top. Respondent told her that he could see her stomach, which made her feel uncomfortable. Although A [REDACTED] acknowledged that the District's dress code required shirts to meet the waistband of pants, she did not believe Respondent's comment was based on the dress code. She noted that other girls wore shorter tops but were not similarly addressed. She conceded, however, that she had not spoken with other students to determine whether Respondent had addressed dress code violations with them.

50. A [REDACTED] testified that this was the only time Respondent commented on her clothing.

51. When asked whether she believed Respondent was telling her to lose weight, A [REDACTED] said yes. She explained that her belief stemmed from two prior incidents.

52. First, approximately one week before the crop top incident, Respondent asked the class if they wanted a snack. A [REDACTED], who had not eaten breakfast, said she would like a granola bar. In response, Respondent allegedly told her not to eat it because he could see her belly. A [REDACTED] testified that the comment made her feel upset and uncomfortable, as she was already struggling to lose weight and felt insecure about her body.

53. Second, in a separate incident, Respondent mentioned that he was planning to sign up with someone to help him lose weight and asked if she wanted him to sign her up as well.

54. Although A [REDACTED] described these as three separate occurrences during her testimony, during the investigation she had described all three as occurring on the same day.

55. A [REDACTED] emphasized that she had been dealing with body image concerns at the time and perceived Respondent's comments as judgmental and inappropriate. She explained that they were particularly harmful because they were directed at a female student.

56. A [REDACTED] stated that girls are judged more harshly than boys based on appearance and expressed concern that other female students might feel ashamed or unsafe if subjected to similar remarks.

57. A [REDACTED] concluded her testimony by stating that Respondent should not return to the classroom to teach female students. In her view, if he made such comments to her, he could make similar remarks to others, causing them to feel equally judged or ashamed.

KARLA GRIEGO

58. Ms. Griego was employed by the District as a resource specialist teacher and later served as the school coordinator at McAlister during the period of time relevant to the Statement of Charges and Accusation. Her testimony focused primarily on her interactions with Respondent. Ms. Griego testified that she filed a complaint regarding those interactions and received notification in 2024 that her complaint had been substantiated. However, the District presented no evidence regarding the investigation or its findings. Moreover, the Statement of Charges referenced only one interaction involving Ms. Griego. As a result, her testimony concerning her personal interactions with Respondent was given limited weight.

59. Griego described McAlister's student population as uniquely composed of pregnant and parenting students, many of whom had recently immigrated and possessed limited English proficiency. She explained that the school's role extended beyond academics to include significant emotional and social support. During the 2021–2022 school year, she participated in Western Association of Schools and Colleges (WASC) focus groups. According to Ms. Griego, students in those groups highlighted their non-academic needs, including a desire for social-emotional supports and more directed teaching. Following these sessions, a recommendation was made in Spring 2022 for more structured instruction.

60. Ms. Griego testified that her early interactions with Respondent were collegial and professional, although she noted that he sometimes made comments she considered "different." She described a turning point in their relationship after an incident where she left campus early. She testified that the next day, Respondent approached her, said he was upset about being left alone, and told her he had thrown desks and chairs in the classroom. He also disclosed that he struggled with anger.

61. Ms. Griego was not present when Respondent allegedly threw desks and chairs, did not observe any damage, and was not told by anyone else that they had seen him do so.

62. Ms. Griego also testified about "community circles" in which students shared personal experiences. She explained that students typically did not include teachers in these sessions, which often focused on topics such as pregnancy, nursing, and bodily changes. She stated that during these circles, students expressed a desire for more traditional classroom environments, including directed teaching. Ms. Griego raised concerns that Respondent did not provide such instruction and instead assigned independent work. However, she did not testify that the WASC recommendations or student feedback were ever communicated to Respondent before he was removed from the classroom. Nor did she explain how directed instruction would be implemented in his class, which she acknowledged included a majority of English language learners.

63. Ms. Griego also expressed concern over Respondent's repeated efforts to promote a penguin as the school mascot. She recounted that during a Zoom meeting, Respondent made a comparison between penguins and McAlister students, which she found inappropriate. She acknowledged that this comment occurred in a meeting not attended by students.

64. According to Ms. Griego, she knew C [REDACTED] H. because C [REDACTED] qualified for special education services and had an Individualized Education Program (IEP). In fall 2022, while working on C [REDACTED]'s IEP, Ms. Griego congratulated her for no longer engaging in avoidant behaviors. C [REDACTED] responded that this was not true and that she had been avoiding Respondent's classroom. C [REDACTED] reported that she had asked Respondent how his views on women had changed, and that he stated that as he grew

older, he no longer cared about women's "butts or breasts," but noticed when students' bodies began to change. C [REDACTED] said the comment made her feel uncomfortable. She also disclosed that she had received text messages from Respondent over the summer.

65. Ms. Griego testified that this was inappropriate for two reasons: (1) staff were not supposed to contact students for non-school-related reasons, and (2) staff were "discouraged" from using personal cell phones and encouraged to use Google Voice. However, she acknowledged that she was not aware of any written policy to that effect.

66. Despite working closely with C [REDACTED], Ms. Griego testified that she had not been aware that C [REDACTED] had previously reported feeling uncomfortable around Mr. Furlan and had asked not to be placed in his class. Ms. Griego asserted that Respondent's conduct caused "trauma" to students but could not identify specific conduct she had observed or clearly describe what trauma she had witnessed. She also testified that Respondent's behavior caused her personal harm.

67. She was unable to recall many basic facts or timelines, stating repeatedly that "this happened two or three years ago."

NURNISA KURBAN

68. Principal Kurban is the current principal at McAlister High School. During her testimony, she became emotional while describing the vulnerable population served by the school and emphasized that C [REDACTED] H. had been made to feel uncomfortable by Respondent.

69. Principal Kurban acknowledged that she, along with Staff Relations, collaborated on the Notice of Unsatisfactory Acts (Notice). However, she had limited recollection of the specific actions allegedly taken by Respondent or the policies he was purported to have violated. She struggled to answer several questions, appeared unfamiliar with the LAUSD Code of Conduct, and at times gave responses that were confusing or internally inconsistent.

70. When asked about the basis for her factual determinations in the Notice, Principal Kurban stated that she relied on the Report, specifically C [REDACTED] H.'s statement. She did not review statements from other students, staff members, Respondent, or any attachments included in the Report before issuing the Notice.

71. Principal Kurban testified that she became principal in 2021 and spent her first year observing the school's operations. At the time, McAlister had three campuses, and she visited the San Fernando campus weekly for between half a day and two days. Although she was aware that Respondent had received formal evaluations in the past, she did not review them. She also did not conduct a formal evaluation of Respondent, noting that there was an agreement with the union not to administer evaluations that year.

72. One of McAlister's longstanding instructional practices was to provide students with work packets, which teachers assisted them in completing. According to Principal Kurban, she eventually concluded that instruction should shift to a more traditional, directed teaching model and testified that she "advocated" for this change. When Respondent did not implement the new approach, she stated that she gave him verbal directives, although she could not recall when. She testified both that she did not issue written directives and that she could not recall whether any had been

provided regarding changes to his teaching style. Her testimony on this point, like several others, was contradictory or lacked clarity.

73. Principal Kurban explained that there were two teachers at the San Fernando campus: Respondent, who taught English, Physical Education, and Health, and Mr. Furlan, who taught other subjects such as science. C █████ requested to remain in Respondent's classroom and be permitted to complete her work there instead of attending Mr. Furlan's class because she was uncomfortable with him. The administration approved the request.

74. Principal Kurban did not provide a clear rationale for why she later included that arrangement as a ground for suspending Respondent from his teaching duties. She merely asserted that once C █████ became uncomfortable with Respondent, he should not have allowed her to remain in his classroom. She acknowledged that Respondent did not compel C █████ to stay and had not been informed that she was no longer permitted to do so.

75. Principal Kurban testified that teachers were not supposed to use their personal cell phones to communicate with students and were encouraged to use Google Voice. She stated that this was the school's policy and that the issue had been discussed in meetings. However, the only written document she could identify that communicated the policy was the LAUSD Code of Conduct found in Exhibit 15. That Code of Conduct, however, was not issued until January 2023, several months after Respondent had been removed from the classroom. The operative policy during the relevant period, Exhibit 29, contains no reference to cell phone communication.

76. Principal Kurban also testified that it was inappropriate for Respondent to have held C █████ H.'s hands during a panic attack. According to her, the appropriate

response would have been for Respondent to leave C [REDACTED] during the episode and contact Principal Kurban so that she could notify the District and arrange for support services.

LARRY IGLEHART

77. Larry Iglehart served as the assistant principal at McAlister High School from July 2015 to June 2019. He currently works for the St. John's County School District in Florida.

78. During his time at McAlister, Mr. Iglehart stated that administrators issued both verbal and written directives to teachers. If a directive involved a schoolwide practice, the directive would be discussed at a staff meeting and then documented. If he was giving a directive to a single teacher, he might deliver it verbally, depending on its nature. If the teacher failed to implement the directive, he would follow up in writing.

79. Mr. Iglehart explained that teachers were expected to text or call students outside of class time, particularly when students were absent. While teachers at other school sites typically contacted parents, McAlister's students were primarily independent. As a result, teachers often contacted students directly on their personal cell phones to ask why they had missed school or failed to complete assignments. Mr. Iglehart stated that he was not aware of any directive requiring teachers to use Google Voice instead of their personal phones.

80. As part of his responsibilities, Mr. Iglehart observed Respondent's instruction and classroom management. He testified, "He was definitely a satisfactory teacher," and stated that Respondent's interactions with students appeared appropriate during those observations.

81. When asked whether his opinion about Respondent would change if it were found that Respondent made comments about students' bodies, Mr. Iglehart said that such conduct did not align with what he had observed of Respondent at school. He added that he would not have expected Respondent to make such remarks unless they related to the dress code.

82. Regarding how teachers should respond to a student experiencing a panic attack, Mr. Iglehart explained that the appropriate procedure would be to contact the school nurse or counselor. If neither was available, the teacher should notify the main office.

83. When asked whether his opinion of Respondent would change if Respondent had contacted students during the summer session, Mr. Iglehart said it would depend on the purpose of the contact. He considered it appropriate if the contact was to confirm enrollment or check on a student's well-being. He described that type of outreach as the kind of personal care "the administration insisted the teachers maintain." He added that if the school had changed its policy, he would have expected the administration to issue written notice to all staff.

84. When asked whether it would change his opinion if Respondent had told a student she needed to lose weight or had told a student not to eat a granola bar because her stomach was sticking out, Mr. Iglehart responded that it would. He confirmed that such comments would have been inappropriate.

RESPONDENT

85. Respondent testified at hearing, and his testimony was consistent with his prior statements to the District.

86. Respondent transferred to McAlister High School during the 2014–2015 school year at the request of then-Principal Ms. Tara Thurston, who had previously worked with him at Santee Educational Complex. Principal Thurston contacted Respondent about an opening, and he accepted. He initially worked at the San Fernando campus for two years, spent one year at the Chatsworth campus, and returned to San Fernando when Chatsworth closed.

87. At McAlister, Respondent taught multiple subjects, including English Language (EL), parenting, health, physical education, psychology, and sociology. He held various leadership roles, including technology coordinator and EL coordinator for four years. In August 2022, Principal Ms. Nurnisa Kurban announced Respondent would take over as psychology coordinator, a role he was expected to assume full time in Spring 2023. He also occasionally filled in for counselors, nurses, or administrators when needed.

88. Respondent described McAlister’s 2021–2022 schedule as running from 8:00 a.m. to 12:30 p.m., with five periods and a nutrition break. Classes included a range of student abilities and language proficiencies, requiring substantial preparation and frequent translation of assignments into Spanish for English language learners.

89. Respondent testified that he began each class by taking attendance while students worked on Chromebooks using Edgenuity software. He rotated between instruction, grading, and responding to emails. Ms. Limpahan regularly assisted him in the classroom.

90. Respondent described his teaching philosophy as relationship-based and likened his role to that of a “dad,” providing support to students, particularly those facing emotional and social challenges. He acknowledged treating C [REDACTED] differently

but stated that this was consistent with individualized teaching strategies and professional training under California's Standards for the Teaching Profession, "Capturing Kids' Hearts," and multicultural inclusion.

91. During the summer of 2021, a new phone system was installed, but his classroom phone did not ring and routed voicemails to email. Despite repeated reports, the issue persisted, and he used his personal phone to communicate with students and families. Due to staffing shortages and language barriers, students like C [REDACTED] often volunteered to translate.

92. Respondent stated that Ms. Kurban made no changes during her first year. During the 2022–2023 school year, expectations were unclear and not formally documented. He was removed from the classroom in October 2022.

93. Respondent denied speaking negatively about staff or Principal Kurban to students and denied disclosing confidential student information. He noted that McAlister's small classroom setting sometimes made it apparent when a student received special education services, such as when students worked with Ms. Griego. As a non-native Spanish speaker, he occasionally relied on C [REDACTED] to assist with translations.

94. Respondent acknowledged limited personal conversations with students in contextually appropriate situations. For example, when C [REDACTED] experienced a panic attack after her grandfather's death, she asked to speak privately. Respondent left Ms. Limpahan in charge and spoke with her outside, sharing that his own grandfather had also passed. C [REDACTED] often experienced panic attacks and would request short, private conversations. Ms. Kurban once observed such an interaction and was informed of the situation but gave no directive to discontinue the practice.

95. When C [REDACTED] expressed discomfort with another teacher, Respondent informed Assistant Principal Ms. Jenay Walker and Principal Thurston that she was spending all five periods in his class. He was never told this arrangement was inappropriate. Ms. Walker later advised that no formal documentation was needed. The arrangement arose after C [REDACTED] reportedly said she would not attend school if placed in Mr. Furlan's class.

96. Respondent recalled the panic attack C [REDACTED] referenced but described a different sequence of events. C [REDACTED] stood up during class and said she could not breathe. Ms. Limpahan was present. Respondent used his first aid training to guide her through breathing exercises. When she calmed down and declined medical assistance, he informed Ms. Walker, who said no record was necessary.

97. Respondent, Ms. Limpahan, and Mr. Furlan later designated C [REDACTED] and M [REDACTED] as student leaders for the 2022–2023 school year to help them develop leadership skills.

98. Respondent admitted to texting students but said it was always school-related and aligned with school directives. He believed texting was more transparent than Google Voice, which masked his number and confused students. It also allowed him to identify student and parent calls.

99. He testified that he informed Ms. Kurban via email and text about a planned summer meeting with C [REDACTED] and M [REDACTED]. The meeting was initially to be held in person, but when Ms. Kurban did not respond, it was changed to a Zoom meeting. Respondent believed C [REDACTED] was enrolled in summer school, as he had helped her enroll, and both her counselor and Ms. Walker were aware. When C [REDACTED]

later said she was not attending, Respondent planned to order lunch while the students helped decorate and translate documents.

100. Regarding the baking pan, Respondent and Ms. Limpahan often brought in treats for student events. For an End of the Month Recognition event, they purchased a cake pan with six calaveras molds so each student could decorate their own cake. C [REDACTED], who found baking therapeutic, agreed to bake the cakes at home and bring them in. The pan was given to her for that purpose, and she was told she could request supplies or reimbursement.

101. Respondent denied observing signs that C [REDACTED] felt uncomfortable. She attended regularly, arrived early, and spent her day in his classroom. Had he known she felt discomfort, he would have reported it to Ms. Walker, who was on her Student Success Team.

102. He acknowledged that topics related to students' bodies arose in parenting, health, and P.E. classes but denied discussing such topics outside the curriculum.

103. Respondent stated that the school's dress code, introduced at the beginning of the school year, prohibited exposed shoulders and midriffs. He typically referred violations to female staff, but if none were available, he addressed them quietly himself. He did not recall an incident with A [REDACTED] but said that if she wore a crop top, he might have said, "your belly can't show; it has to go to the hem of your pants." He denied making comments meant to embarrass students.

104. Respondent denied ever refusing food to students. Pregnant students received granola bars as needed, while others received them during breaks or as rewards for positive behavior. He did not recall denying A [REDACTED] a granola bar but may

have asked her to wait. Around that time, staff had been advised that granola bars were not as healthy as previously thought.

105. Respondent denied ever discussing A■■■■'s weight. He said weight may have been discussed as part of the parenting or P.E. curriculum but never as a personal comment. A■■■■ had two P.E. classes and needed to complete 80 hours. He may have discussed ways she could meet the requirement.

106. Respondent denied ever throwing desks or chairs in the classroom. He said it would have been difficult due to a shoulder injury. He also denied telling Ms. Griego that he had thrown furniture and denied having anger issues.

107. He acknowledged telling students about his idea to adopt the penguin as the school mascot. He explained that penguins symbolized resilience, uniqueness, and unity, qualities he believed reflected McAlister's student population.

LEGAL CONCLUSIONS

Jurisdiction

1. The Commission has jurisdiction to proceed in this matter under Education Code section 44944.

Standard and Burden of Proof

2. In this case, the District has the burden of proving the allegations set out in the Statement of Charges and/or Accusation by a preponderance of the evidence. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035, 1039-1040.) Preponderance of the evidence means that "the evidence on [the

District's] side outweighs, preponderates over, is more than, the evidence on the other side." (*Glage v. Hawes Firearms Co.* (1990) 226 Cal.App.3d 314, 325.)

Cause for Dismissal

3. The grounds for the dismissal of a teacher in this state are enumerated in Education Code section 44932. In this case, the District asserts grounds of immoral conduct (Ed. Code, § 44932, subd. (a)(1) and 44939); unprofessional conduct (Ed. Code, § 44932, subd. (a)(2)); evident unfitness for service (Ed. Code, § 44932, subd. (a)(6)); persistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed for the government of public schools by the State Board of Education or the governing board of the school district employing him (Ed. Code, § 44932, subd. (a)(8)); and willful refusal to perform regular assignments without reasonable cause, as prescribed by reasonable rules and regulations of the employing district (Ed. Code, § 44939).

Analysis

4. At hearing, it was established that Respondent held C ■■■ H.'s hands during a panic attack, gave her a baking tray, exchanged text messages with her and other students outside instructional hours, told A ■■■ P. that her stomach was showing when she wore a crop top, and permitted C ■■■ H. to remain in his classroom. Respondent, however, presented credible evidence that explained the context and rationale for these actions.

5. Other allegations were not supported by the record. The alleged comment about women's buttocks and breasts, which C ■■■ H. claimed was made in response to a question from M ■■■, was not corroborated by M ■■■ or any other students. No witnesses reported hearing the comment or even hearing rumors about

it. A [REDACTED] P.'s claim that Respondent told her she needed to lose weight was similarly unsubstantiated. Respondent credibly denied making such a statement, and his testimony on this point was persuasive.

6. The District presented minimal evidence to support the allegation that Respondent failed to provide instruction and instead spent time on his computer. Although Ms. Griego and Principal Kurban criticized Respondent's instructional style, the record does not show that Respondent was ever given a formal directive to modify his approach prior to reassignment. In contrast, testimony from Ms. Limpahan and multiple students described Respondent as a respectful and attentive teacher who consistently supported them. Mr. Iglehart, a former assistant principal at McAlister, also observed Respondent's classroom performance and found it satisfactory. Respondent's most recent formal evaluation, completed by the prior principal, rated him effective in all evaluated areas.

7. The District also failed to present any evidence that anyone observed Respondent throw furniture. Respondent denied doing so and cited a shoulder injury that would have made such conduct physically difficult.

8. With respect to the remaining allegations, the District did not produce any written policy in effect at the time that prohibited the use of personal cell phones for communication with students or required the use of Google Voice. Principal Kurban was unable to identify any written District policy until District counsel directed her to Exhibit 15, the LAUSD Code of Conduct that had been issued on January 2023. The operative policy during the relevant period, Exhibit 29, contains no reference to cell phone communication.

9. The evidentiary record reflects multiple failures by the administration to provide Respondent with clear expectations or meaningful guidance. If the District intended for Respondent to refrain from certain practices, it bore the responsibility of communicating those expectations unambiguously and in writing. Principal Kurban's testimony revealed a striking lack of familiarity with the factual record and District policies. Her testimony also showed that she failed to provide Respondent with any clear direction and merely repeated the allegations by complainants when she issued the Notices. When asked about the specific allegations in the Notices, she admitted to relying solely on C [REDACTED] H.'s statement while disregarding contrary evidence and failing to review attachments to the report, and she was unable to articulate the basis for several charges. Although she faulted Respondent for allowing C [REDACTED] to remain in his classroom, that arrangement had been requested by C [REDACTED] and approved by McAlister administration. Principal Kurban was aware of this practice but issued no verbal or written directive to discontinue it. Her failure to engage in supervisory oversight, provide formal feedback, or ensure clarity around staff expectations undermines the credibility and fairness of the District's actions.

10. Finally, Principal Kurban's suggestion that Respondent should have left a visibly distressed student to seek an administrator is not only unreasonable but contrary to trauma-informed practices. Respondent's decision to remain with C [REDACTED] H. during her panic attack and offer immediate support was consistent with the care expected of educators serving vulnerable student populations.

11. The District also sought to introduce disciplinary memoranda from 2013 and 2014 to establish a pattern of misconduct. Those documents were excluded pursuant to Education Code section 44944, subdivision (b)(2)(A), which prohibits the use of evidence of acts occurring more than four years before the date of the notice of

intent to dismiss. The District was ordered to submit briefing to justify the admission of the documents. In its brief, the District asserted that the memoranda were admissible as regularly maintained records under Education Code section 44944, subdivision (b)(2)(B), and that they were necessary to prove the charge of persistent violation. However, subdivision (b)(2)(B) does not nullify the four-year rule. In fact, it reiterates that “no decision relating to the dismissal or suspension of an employee shall be made based on charges or evidence of any nature relating to matters occurring more than four years before the filing of the notice.” The District’s inability to establish its case without relying on barred evidence does not justify disregarding the statutory limitation. It simply means the District failed to meet its burden of proof under the standards imposed by law.

12. In evaluating whether Respondent’s conduct renders him unfit to teach, the Commission applies the factors identified by the California Supreme Court in *Morrison v. State Board of Education* (1969) 1 Cal.3d 214. These include: (1) the likelihood that the conduct adversely affected students or fellow teachers; (2) the degree of such adversity anticipated; (3) the proximity or remoteness in time of the conduct; (4) the type of teaching credential held; (5) extenuating or aggravating circumstances; (6) the praiseworthiness or blameworthiness of the motives; (7) the likelihood of recurrence; and (8) the extent to which disciplinary action may impact the constitutional rights of the teacher or other teachers.

13. Applying these factors here, the conduct proved, which consisted of text communications with a student during non-instructional hours, one instance of holding a student’s hands during a panic attack, and giving a student a baking tray as a gift, did not adversely affect students or staff in a significant or lasting way. The conduct was limited, occurred more than two years before the hearing, and often

arose in response to students' emotional or academic needs. Respondent holds a credential authorizing instruction in multiple subject areas, including physical education and health, where some discussion of developmental changes is within the curriculum.

14. There were extenuating circumstances, including a lack of clear directives from administrators, testimony that Respondent was following established practices, and consistent evidence from aides and students that Respondent was supportive and effective. There was no indication that Respondent acted from a blameworthy motive, and he has not previously been subject to discipline within the four-year rule.

Immoral Conduct (Education Code § 44932, subd. (a)(1))

15. "The term 'immoral' has been defined generally as that which is hostile to the welfare of the general public and contrary to good morals. Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare. [Citation.]" (*Orloff v. Los Angeles Turf Club* (1951) 36 Cal.2d 734, 740; see also *Board of Education of San Francisco Unified School Dist. v. Weiland* (1960) 179 Cal.App.2d 808, 811 (*Weiland*).)

16. It is the unanimous conclusion of the Commission that the District did not establish by a preponderance of the evidence that Respondent engaged in immoral conduct, within the meaning of Education Code section 44932, subdivision (a)(1). While some of Respondent's conduct may raise concerns regarding boundaries, his conduct was not immoral.

Unprofessional Conduct (Education Code § 44932, subd. (a)(2))

17. Unprofessional conduct is defined as behavior that violates ethical norms or is unbecoming of a teacher in good standing. (*Board v. Swan* (1953) 41 Cal.2d 546, 553.)

18. It is the unanimous conclusion of the Commission that the District did not establish by a preponderance of the evidence that Respondent engaged in unprofessional conduct, within the meaning of Education Code section 44932, subdivision (a)(1). Although Respondent's communications and informality raised questions of judgment, the record does not reflect a violation of professional ethics. Respondent's interactions occurred in a context where students required emotional support and administrative expectations were vague or nonexistent.

Evident Unfitness for Service (Education Code § 44932, subd. (a)(6))

19. Evident unfitness for service is established by conduct demonstrating that the teacher is "clearly not fit, not adapted or suitable for teaching, ordinarily by reason of temperamental defects or inadequacies." (*Woodland Joint Unified School Dist. v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, 1444 (*Woodland*).) "'Evident unfitness for service' connotes a fixed character trait, presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district." (*Id.*)

20. It is the unanimous conclusion of the Commission that the District did not establish by a preponderance of the evidence that Respondent is unfit to teach, within the meaning of Education Code section 44932, subdivision (a)(6).

Persistent Violation of Rules and Willful Refusal to Perform Duties (Education Code § 44932, subd. (a)(8); § 44939)

21. Although there are no cases interpreting the term "willful refusal to perform regular assignments without reasonable cause" under Education Code section 44939, case law involving the alleged misconduct of public employees in other settings reflects that the term "willful" carries a volitional coloration which excludes the notion of accidental or even negligent conduct." (*Coomes v. State Personnel Bd.* (1963) 215 Cal.App.2d 770, 775; see also *Peters v. Mitchell* (1963) 222 Cal.App.2d 852, 862 ["Wilful disobedience connotes a specific violation of command or prohibition."].) Declining to obey an employer's directions, without reason, is sufficient to establish willful refusal. (See, e.g., *Wilbur v. Office of City Clerk of City of Los Angeles* (1956) 143 Cal.App.2d 636, 642 [observing an employee who "did not attribute his refusals to illness" and made "no showing before the hearing examiner of willingness to comply with the reasonable orders of his superiors," demonstrated "willful refusal to obey the reasonable orders of an employer"].)

22. The District failed to establish by a preponderance of the evidence that Respondent knowingly or repeatedly disobeyed valid directives during the relevant time period. No written policy prohibited the alleged conduct, and there is no evidence that Respondent acted in defiance of clear directives. It is the unanimous conclusion of the Commission that the District did not establish by a preponderance of the evidence that Respondent persistently violated or willfully refused to perform his duties under Education Code sections 44932, subdivision (a)(8), and 44939.

ORDER

The Accusation against Respondent Michael Cohen is hereby dismissed.
Respondent Michael Cohen shall not be dismissed from employment with the Los Angeles Unified School District.

DATE: 05/28/2025



Paula Falsetta (May 28, 2025 13:45 PDT)

PAULA FALSETTA

Commission Member

DATE: 05/28/2025



John Kohlmeier (May 28, 2025 16:53 EDT)

JOHN KOHLMEIER

Commission Member

DATE: 05/28/2025



Nana Chin (May 28, 2025 13:54 PDT)

NANA CHIN

Administrative Law Judge

Office of Administrative Hearings